

Such requests are to be granted provided that the goods have not already been released or, if they have been released, the declarant proves that they have not been altered in anyway (Article 190 UCC).

Records of examination of documents and goods and clearance

Particulars of examinations are to be recorded in AIS which must show the nature and extent of examination and its result, the marks and numbers of the packages actually examined, and particulars of any weight taken (Article 243 (1) IA).

The officer must certify on each declaration that the goods have been 'cleared as declared' or 'cleared as amended'. The records must be dated, timed and signed by the officer concerned.

Groupage loads

In examining containers, officers are in the first instance, to ensure that all consignments carried have been duly reported or manifested. Examinations of containers and goods at private premises are to be dealt with in accordance with the instructions at [paragraph 7.1.10](#).

Empty containers

Examinations of containers declared to be empty are to be undertaken on a risk analysis basis in order to ensure that they are not concealing prohibited/restricted goods. These examinations should be carried out over a suitable period ensuring all the various carriers and/or operators have been examined over time.

7.1.9 Removal of containers to private premises

Eligibility

Section 28(3)(a) of the Customs Act 2015 provides that a Customs officer may "require the goods to be taken to such place as he or she considers suitable for carrying out such examination". Section 28 also provides that "any costs incurred shall be borne by the importer or exporter of the goods, as the case may be".

Requests from importers or agents to have containers removed for examination to specified private premises are to be granted where official examination at the specified private premises can be arranged (see below) and where it is shown that examination of the goods at the Customs office would result in risk of damage to fragile goods, special repacking difficulties, health or environmental risks from hazardous goods or risk of pilferage. These considerations are not exhaustive, and applications are to be treated on their merits. In the case of an Authorised Economic Operator, requests for controls to be carried out at a place other than the Customs office should be allowed and examination carried out as a matter of priority.

Removal requests are not to be granted where reasonable suspicion of irregularity attaches to the container and/or the goods, the importer, agent or carrier has previously come under unfavourable notice in this area, including the irregular breaking of seals during removals, or a full turn-out check has been called for following the discovery of irregularities during a partial strip.